

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nick Kuczek	Team: Squad #08	CCRB Case #: 202300377	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Thursday, 01/12/2023 8:00 PM	Location of Incident: Target (located at 40 West 225th Street)	18 Mo. SOL 7/12/2024	Precinct: 52
Date/Time CV Reported Mon, 01/16/2023 1:29 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 01/16/2023 1:29 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Jared Santiago	22767	970184	052 PCT
2. PO James Carroll	09749	964971	NARCB BX
3. PO Emily Marcus	26446	969936	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO James Carroll	Discourtesy: Police Officer James Carroll spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]
B. PO James Carroll	Abuse: Police Officer James Carroll threatened to arrest § 87(2)(b) [REDACTED]	[REDACTED]
C. PO Emily Marcus	Abuse: Police Officer Emily Marcus stopped § 87(2)(b) [REDACTED]	[REDACTED]
D. PO Jared Santiago	Abuse: Police Officer Jared Santiago stopped § 87(2)(b) [REDACTED]	[REDACTED]
E. PO James Carroll	Abuse: Police Officer James Carroll stopped § 87(2)(b) [REDACTED]	[REDACTED]
F. PO James Carroll	Discourtesy: Police Officer James Carroll spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]
G. PO James Carroll	Abuse: Police Officer James Carroll threatened to arrest § 87(2)(b) [REDACTED]	[REDACTED]
H. PO Emily Marcus	Abuse: Police Officer Emily Marcus searched § 87(2)(b) [REDACTED]	[REDACTED]
I. PO Emily Marcus	Abuse: Police Officer Emily Marcus damaged § 87(2)(b) [REDACTED]'s property.	[REDACTED]
J. PO Emily Marcus	Discourtesy: Police Officer Emily Marcus spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]
K. PO Emily Marcus	Off. Language: Police Officer Emily Marcus made offensive remarks to § 87(2)(b) [REDACTED]	[REDACTED]
L. PO James Carroll	Discourtesy: Police Officer James Carroll spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]
M. PO James Carroll	Abuse: Police Officer James Carroll threatened to arrest § 87(2)(b) [REDACTED]	[REDACTED]

Officer(s)	Allegation	Investigator Recommendation
N.PO Emily Marcus	Abuse: Police Officer Emily Marcus failed to provide § 87(2)(b) with a business card.	
O.PO Jared Santiago	Abuse: Police Officer Jared Santiago failed to provide § 87(2)(b) with a business card.	
P.PO James Carroll	Abuse: Police Officer James Carroll failed to provide § 87(2)(b) with a business card.	

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via call processing system on January 16, 2023.

On January 12, 2023, at approximately 8:00 PM, PO Emily Marcus, PO Jared Santiago, and PO James Carroll of the 52nd Precinct received a phone call from the Target asset protection team at the Target located at 40 West 225th Street in the Bronx, requesting their presence while they detained and removed § 87(2)(b) from the store. Upon arrival, PO Marcus, PO Santiago, and PO Carroll observed § 87(2)(b) of Target asset protection tell § 87(2)(b) to sign a trespass form and to leave the store multiple times, to which § 87(2)(b) refused. PO Carroll allegedly told § 87(2)(b) “If you don’t sign these fucking papers, you’re going to get locked up.” (**Allegation A – Discourtesy: § 87(2)(g)**) (**Allegation B – Abuse of Authority: § 87(2)(g)**). § 87(2)(b) was handcuffed and removed to the asset protection office (**Allegations C, D, and E – Abuse of Authority: § 87(2)(g)**), where PO Carroll allegedly told § 87(2)(b) “You’ve gotta fucking sign these fucking papers so I can leave,” “I don’t give a fuck. They don’t want you here. Sign these papers,” and, “You gonna sign these fucking papers or are you gonna go to jail?” (**Allegation F – Discourtesy: § 87(2)(g)**) (**Allegation G – Abuse of Authority: § 87(2)(g)**). PO Marcus then allegedly reached her hand into § 87(2)(b)’s coat pocket, removed his wallet, removed a five-hundred-dollar Target gift card from the wallet, snapped it in half, and threw it in the garbage (**Allegation H and I – Abuse of Authority: § 87(2)(g)**). When § 87(2)(b) asked PO Marcus why she did this, she allegedly stated, “Because I don’t give a fuck,” and called § 87(2)(b) a “fat bitch” (**Allegation J – Discourtesy: § 87(2)(g)**) (**Allegation K – Offensive Language: § 87(2)(g)**). § 87(2)(b) was unhandcuffed, signed the trespass form, and prior to walking out of the asset protection office, PO Carroll allegedly stated, “Okay. Now you can’t fucking come back in here. If you do, we’ll come back and really arrest you.” She also told § 87(2)(b) to “get the fuck out”, and stated, “If you fucking come back here, we are going to come back and lock you up.” (**Allegation L – Discourtesy: § 87(2)(g)**) (**Allegation M – Abuse of Authority: § 87(2)(g)**). None of the officers offered § 87(2)(b) a business card at the conclusion of this incident (**Allegations N, O, and P – Abuse of Authority: § 87(2)(g)**).

§ 87(2)(b) was not arrested or summonsed as a result of this incident.

The investigation obtained Body-worn camera footage (BWC) from PO Marcus, PO Santiago, and PO Carroll (Board Review 07).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer James Carroll spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer James Carroll threatened to arrest

§ 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Emily Marcus stopped § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Jared Santiago stopped § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer James Carroll stopped § 87(2)(b)

Allegation (F) Discourtesy: Police Officer James Carroll spoke discourteously to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer James Carroll threatened to arrest

§ 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Emily Marcus searched § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Emily Marcus damaged § 87(2)(b)’s

property.

Allegation (J) Discourtesy: Police Officer Emily Marcus spoke discourteously to § 87(2)(b).

Allegation (K) Offensive Language: Police Officer Emily Marcus made offensive remarks to

§ 87(2)(b)

Allegation (L) Discourtesy: Police Officer James Carroll spoke discourteously to § 87(2)(b).

Allegation (M) Abuse of Authority: Police Officer James Carroll threatened to arrest

§ 87(2)(b)

§ 87(2)(b) provided a statement to the CCRB via telephone on January 26, 2023. He stated that on January 12, 2023, at approximately 8:00 PM, he was inside the Target at 40 West 225th Street in the Bronx. He was approached by Target asset protection team members § 87(2)(b) and § 87(2)(b) and by PO Marcus, PO Santiago, and PO Carroll. § 87(2)(b) held a Target trespassing form in her hand and told § 87(2)(b) that he needed to sign the paper, banning him from the property, and that asset protection no longer wanted him in the store. PO Carroll told § 87(2)(b) that he was no longer welcome in the store, and stated, “If you don’t sign these fucking papers, you’re going to get locked up.” § 87(2)(b) refused, and PO Carroll and PO Santiago handcuffed him, and § 87(2)(b) was escorted to the asset protection office.

Once inside the asset protection office, PO Carroll removed the handcuffs from § 87(2)(b) and stated, “You’ve got to fucking sign these fucking papers so I can leave.” § 87(2)(b) told PO Carroll that it was a public store, and PO Carroll responded, stating, “I don’t give a fuck. They don’t want you here. Sign these papers.” PO Carroll told § 87(2)(b) to stand up, which he did, and PO Carroll handcuffed § 87(2)(b) again and sat him back down on the bench. PO Marcus reached into the left-breast pocket of § 87(2)(b)’s jacket and removed his wallet. PO Marcus removed a five-hundred-dollar Target gift card from the wallet, snapped it in half, and threw it in a garbage can. § 87(2)(b) asked PO Marcus why she broke his gift card, and PO Marcus stated, “Because I don’t give a fuck,” and called § 87(2)(b) a “fat bitch.” PO Marcus removed § 87(2)(b)’s identification from the wallet and gave it to § 87(2)(b) and PO Carroll stated, “Are you going to fucking sign these papers or are you going to go to jail?” § 87(2)(b) told PO Carroll that he would sign the paper, and PO Carroll stood § 87(2)(b) up, removed the handcuffs, and § 87(2)(b) signed the trespass form. PO Carroll stated, “Now you can’t fucking come back in here. If you do, we’ll come back and really arrest you,” and told § 87(2)(b) to “get the fuck out,” PO Marcus, PO Santiago, and PO Carroll walked § 87(2)(b) to the asset protection door, and as he walked out of the door, PO Carroll stated, “If you fucking come back here, we are going to come back and lock you up,” and § 87(2)(b) left the store (Board Review 08).

PO Marcus testified at the CCRB on March 23, 2023. She stated that on January 12, 2023, at approximately 8:00 PM, she received a phone call on her department cellphone from § 87(2)(b) stating that § 87(2)(b) was inside the store, and that the Target asset protection team wanted to have § 87(2)(b) sign a corporate trespass form and ban him from the store. The asset protection team wanted § 87(2)(b) removed from the store based on previous incidents in which he had harassed and used profanity with Target staff members. There was no altercation between § 87(2)(b) and Target staff on January 12, 2023, but the asset protection team had the authority to remove any person from their store as a private business. PO Marcus was familiar with this Target and the asset protection team, as she, PO Santiago, and PO Carroll had responded to incidents there regularly, but had not previously interacted with § 87(2)(b).

PO Marcus, PO Santiago, and PO Carroll arrived at Target and § 87(2)(b) and § 87(2)(b) told the officers that they were going to speak to § 87(2)(b) to have him sign the trespass form and that

they wanted them to be there for a police presence.

PO Marcus, PO Santiago, and PO Carroll followed behind § 87(2)(b) and § 87(2)(b) as they approached § 87(2)(b) in the electronics section, and § 87(2)(b) told § 87(2)(b) that he had to leave the store, that he needed him to sign the corporate trespassing form, and that he was no longer allowed to come back to the store. § 87(2)(b) asked § 87(2)(b) for his identification, and § 87(2)(b) took his wallet out of his pocket and held it in his hand but did not provide it to § 87(2)(b). § 87(2)(b) repeatedly asked § 87(2)(b) why he was no longer welcome in the store and § 87(2)(b) repeatedly told him that it was because of his previous incidents. Either PO Marcus, PO Santiago, or PO Carroll told § 87(2)(b) that the store had the right to not allow § 87(2)(b) inside, and § 87(2)(b) became defensive, upset, and raised his voice, stating that that Target was the only store that carried his preferred brand of water. PO Marcus, PO Santiago, or PO Carroll told § 87(2)(b) that he still needed to leave, and § 87(2)(b) refused. PO Marcus, PO Santiago, and PO Carroll told § 87(2)(b) to sign the trespass form and told him that he needed to leave the store about five to ten times each, with § 87(2)(b) refusing to do so. PO Carroll did not tell § 87(2)(b) “If you don’t sign these fucking papers, you’re going to get locked up.”

PO Marcus, PO Santiago, and PO Carroll activated their body-worn cameras and handcuffed § 87(2)(b) with his wallet remaining in his hand. PO Carroll took the wallet from him and held it in his hand, as he, PO Marcus, PO Santiago, § 87(2)(b) and § 87(2)(b) escorted § 87(2)(b) towards the store exit. PO Carroll and PO Santiago walked alongside § 87(2)(b) while PO Marcus walked behind them with § 87(2)(b) and § 87(2)(b) and PO Carroll handed § 87(2)(b)’s wallet back to PO Marcus. PO Marcus opened § 87(2)(b)’s wallet and removed his identification and handed it to § 87(2)(b). PO Marcus stated that she did this because § 87(2)(b) had requested § 87(2)(b)’s identification earlier for the purpose of filling out a trespass form.

§ 87(2)(b) was brought into the asset protection office, and § 87(2)(b) prepared a trespass form to be signed by § 87(2)(b). PO Carroll did not tell § 87(2)(b) “You’ve gotta fucking sign these fucking papers so I can leave,” or, “I don’t give a fuck. They don’t want you here. Sign these papers.” PO Marcus did not remove a Target gift card from § 87(2)(b)’s wallet and break it, or tell § 87(2)(b) “I don’t give a fuck,” or call him a “fat bitch.” PO Marcus denied entering any of § 87(2)(b)’s pockets, and the only item removed from § 87(2)(b)’s wallet was his identification. PO Carroll never told § 87(2)(b) “Are you gonna fucking sign these papers or are you gonna go to jail?” § 87(2)(b) handed § 87(2)(b)’s identification back to PO Marcus, and she placed the identification back inside § 87(2)(b)’s wallet, and either PO Santiago or PO Carroll unhandcuffed § 87(2)(b) and PO Marcus, PO Santiago, and PO Carroll de-activated their body-worn cameras. PO Marcus, PO Santiago, and PO Carroll de-activated their body-worn cameras at this point because their police action had concluded. § 87(2)(b) handed § 87(2)(b) the trespass form and § 87(2)(b) signed it. PO Marcus opened the asset protection office door, and § 87(2)(b) walked out on his own and left the scene. PO Carroll never told § 87(2)(b) “Okay. Now you can’t fucking come back in here. If you do, we’ll come back and really arrest you,” “Get the fuck out,” or, “If you fucking come back here, we are going to come back and lock you up.” Neither PO Marcus, PO Santiago, nor PO Carroll used any profanity while interacting with § 87(2)(b) or threatened § 87(2)(b) with arrest during this incident. PO Marcus stated that there is no legal requirement for a person to sign a corporate trespass form and that they can refuse to do so, but the store can legally revoke any person’s right to be on the property at their own discretion. A person could be arrested if they remained on the property after being given a reasonable opportunity to leave (Board Review 12).

PO Santiago testified at the CCRB on March 07, 2023. His testimony was consistent with PO Marcus’ in that he did not hear PO Carroll, or PO Marcus use any profanity, and did not hear PO

Carroll threaten § 87(2)(b) with arrest during this incident. PO Santiago stated that PO Marcus did not enter the breast pocket of § 87(2)(b) and remove his wallet, remove a Target gift card from it, and snap it in half during this incident (Board Review 13).

PO Carroll testified at the CCRB on March 31, 2023. His testimony was consistent with PO Marcus' in that he did not use any profanity or threaten § 87(2)(b) with arrest, and did not hear PO Marcus use any profanity during this incident. PO Carroll stated that PO Marcus did not enter the breast pocket of § 87(2)(b) and remove his wallet, remove a Target gift card from it, and snap it in half during this incident. PO Carroll stated that § 87(2)(b) could have been arrested for criminal trespassing, as § 87(2)(b) repeatedly refused asset protection and officer's requests to leave the store (Board Review 14).

§ 87(2)(b) provided a statement to the CCRB via telephone on February 10, 2023. His statement was consistent with PO Marcus' in that § 87(2)(b) refused multiple requests from asset protection to sign the trespass form and leave the store, before PO Marcus, PO Santiago, and PO Carroll became involved. § 87(2)(b) acknowledged that he needed § 87(2)(b)'s identification to positively identify him for the trespass form. § 87(2)(b) did not hear any officer use profanity or tell § 87(2)(b) that he could be arrested during this incident. § 87(2)(b) stated that no officer searched or entered § 87(2)(b)'s pockets, and that he did not observe PO Marcus damage, break, or throw away a Target gift card, or any property belonging to § 87(2)(b) during this incident (Board Review 11).

The investigation was unable to obtain testimony from § 87(2)(b) as she was unwilling to provide the investigation with a statement.

PO Marcus' BWC captured her, PO Santiago, and PO Carroll's interaction with § 87(2)(b) from when he was handcuffed in the Target electronics section, until PO Santiago unhandcuffed him in the asset protection office. The footage begins with PO Marcus, PO Santiago, and PO Carroll handcuffing § 87(2)(b) inside the electronics section of Target. At one minute and twenty-eight seconds, PO Carroll takes § 87(2)(b)'s wallet out of his hand, and the officers begin escorting § 87(2)(b) to the asset protection office. At one minute and fifty seconds, PO Carroll hands § 87(2)(b)'s wallet back to PO Marcus, and PO Marcus proceeds to take § 87(2)(b)'s identification out of it and hand it to § 87(2)(b). At four minutes and thirteen seconds, § 87(2)(b) is brought into the asset protection office, and at six minutes, PO Santiago removes the handcuffs from § 87(2)(b) (Board Review 07).

According to NY CLS Penal § 140.05, a person is guilty of criminal trespassing when they knowingly enter or remain unlawfully in or upon premises (Board Review 15).

According to NYPD Patrol Guide Procedure 212-11, A Terry Stop/level 3 encounter may be conducted only when a police officer has an individualized reasonable suspicion that the person has committed, is committing, or is about to commit a felony or Penal Law misdemeanor (Board Review 16).

§ 87(2)(g)
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PO Santiago and PO Carroll's BWC (Board Review 07) was consistent in capturing the same interactions that PO Marcus' BWC captured during this incident. BWC revealed that PO Carroll did not state, "You've gotta fucking sign these fucking papers so I can leave," "I don't give a fuck. They don't want you here. Sign these papers," or, "You gonna fucking sign these papers or are you gonna go to jail?" BWC also revealed that PO Marcus did not enter the breast pocket of § 87(2)(b)'s coat while handcuffed in the asset protection office, remove his wallet, remove a Target gift card from it, and snap it in half. PO Marcus did not state, "I don't give a fuck," or call § 87(2)(b) a "fat bitch." § 87(2)(b)'s wallet was in his hand while being handcuffed, and PO Marcus did not enter the wallet further after removing § 87(2)(b)'s identification from it while escorting § 87(2)(b) to the asset protection office. At no point did any officer enter any pocket of § 87(2)(b). § 87(2)(g)

§ 87(2)(b) alleged that before being handcuffed, PO Carroll stated, "If you don't sign these fucking papers, you're going to get locked up." § 87(2)(b) also alleged that after he was unhandcuffed, PO Carroll stated, "Now you can't fucking come back in here. If you do, we'll come back and really arrest you," "Get the fuck out," and, "If you fucking come back here, we are going to come back and lock you up." These statements allegedly occurred either before PO Marcus, PO Santiago, and PO Carroll's body-worn cameras were activated, or after their body-worn cameras were deactivated. PO Marcus, PO Santiago, PO Carroll, and § 87(2)(b)'s testimony were all consistent in that PO Carroll did not make these statements, and that he did not use profanity or threaten § 87(2)(b) with arrest at any point during this incident. § 87(2)(b)'s testimony was inconsistent with that of PO Marcus, PO Santiago, PO Carroll, and § 87(2)(b). All the alleged misconduct occurred while body-worn cameras were activated, and the footage showed that what § 87(2)(b) alleged did not occur. § 87(2)(g)

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§ 87(2)(g)

Allegation (N) Abuse of Authority: Police Officer Emily Marcus failed to provide § 87(2)(b) with a business card.

Allegation (O) Abuse of Authority: Police Officer Jared Santiago failed to provide § 87(2)(b) with a business card.

Allegation (P) Abuse of Authority: Police Officer James Carroll failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated that none of PO Marcus, PO Santiago, or PO Carroll offered or provided him with a business card during this incident (Board Review 08).

PO Marcus stated that she did not offer or provide § 87(2)(b) with a business card during this incident and stated that she did not know if this was an interaction that would require one to be offered (Board Review 12).

PO Santiago stated that he did not offer or provide § 87(2)(b) with a business card during this incident because he did not believe that he and his fellow officers were taking enforcement action against § 87(2)(b) (Board Review 13).

PO Carroll stated that he did not offer or provide § 87(2)(b) with a business card during this incident, because he believed officers were only required to offer a business card when an arrest is

made, when a summons is issued, and when a person is frisked (Board Review 14).

According to Administrative Code 14-174, officers must offer a business card to any individual at the conclusion of law enforcement activities, such as pedestrian stops and searches, that do not result in an arrest or summons. When an officer does not have business cards on them the officer must provide the individual with a handwritten card that includes their name, rank, and command (Board Review 10).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 01).
- PO Marcus has been a member-of-service since November 02, 2020 and this is the first CCRB complaint to which she has been a subject (Board Review 02).
- PO Santiago has been a member of service since November 02, 2020 and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Carroll has been a member-of-service since January 10, 2018 and this is the first CCRB complaint to which she has been a subject (Board Review 04).

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 04, 2023, the NOC inquiry with the NYC Comptroller's Office was still pending (Board Review 05). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 8

Investigator:	<u>Nick Kuczek</u>	<u>Inv. Nick Kuczek</u>	<u>04/21/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>04/21/2023</u>
	Signature	Print Title & Name	Date

Reviewer: _____

Signature

Print Title & Name

Date